

2019 P L C (C.S.) 814

[Lahore High Court]

Before Jawad Hassan and Shams Mehmood Mirza, JJ

FEDERATION OF PAKISTAN and others

Versus

NADIA IQBAL and others

I.C.A. No. 1899 of 2019, decided on 18th February, 2019.

Civil service---

---Appointment against the posts of Corporal (Female)---Reserve list---Interview conducted by Single Judge of High Court---Scope---Petitioner filed constitutional petition which was allowed by Single Judge by showing dissatisfaction with the interview process conducted by the authorities---Single Judge of High Court had directed the authorities to appoint the candidate against one vacancy of Corporal (Female)---Validity---Single Judge in Chamber misdirected himself in assuming the mantle of selection committee---High Court in writ jurisdiction could not substitute its judgment with that of the administrative authorities---Courts should not interfere in the results of interview as same were subjective in nature---Single Judge had travelled in the realm of supposition which was not apt---Sixty five posts of Corporal (Female) had been filled up by the authorities and candidates at Serial Nos. 1 to 15 from reserve list were also accommodated in place of those candidates on general list who opted not to join the post or were declared medically unfit---Three candidates were ahead of petitioner on the reserve list and there was no vacancy available for the post in question---Even if there was a vacancy the petitioner could not be appointed to the post in question on account of three candidates being ahead of her in the reserve list---Impugned order passed by Single Judge was set aside---Intra court appeal was allowed, in circumstances.

Ashraf Sangri v. Federation of Pakistan and others 2014 SCMR 157 rel.

Miss Hina Hafeez Ullah Ishaq Assistant Attorney General along with Ghulam Shabbir A.D. Legal, A.S.F. and Mian Badar Ehsan, S.D. Aviation Division.

Raja Naveed Azam for Respondent No.1.

Muhammad Sajjad Naeem Mohal for Respondent No.3.

Muhammad Shahid Hashim for Respondent.

ORDER

This intra Court appeal filed under section 3 of the Law Reforms Ordinance, 1972 seeks to challenge order dated 13.12.2018 passed by the learned Single Judge in Chamber.

2. Facts of the case in brief are that respondent No.1 applied for the post of Corporal Female (BS-5) and underwent the necessary tests including the interview. Her name was not included in the final merit list but appeared in the list of reserved candidates. Feeling aggrieved, respondent No.1 filed the writ petition before this Court which was allowed by the learned Single Judge in Chambers by showing dissatisfaction with the interview process conducted by the authorities.

3. Learned Deputy Attorney General representing the appellants submitted that initially 379 posts of Corporal (Male and Female) were advertised which were subsequently increased to 1283 posts. The quota of women came to 65 seats. It is stated that all 65 seats were filled up by candidates on general merit. It was furthermore submitted that respondent No.1 was placed at serial No.18 of the reserve seats which was in fact a waiting list. The Deputy Attorney General also submitted that the women candidates in the reserve list up to serial No.14 were accommodated as corresponding number of candidates on the general merit list either did not join the post or were declared medically unfit. It was accordingly submitted that the learned Single Judge in Chambers fell in error in allowing the writ petition.

4. Learned counsel for respondent No.1 drew the attention of this Court towards parawise comments submitted by the Deputy Director (Legal) Airport Security Force in which it was submitted that the petitioner was placed at serial No.18 of the reserve list and that top fifteen candidates were accommodated in view of non-availability of the candidate on the general merit list. It was accordingly submitted that there was disconnect between parawise comments filed before learned Single Judge in Chambers and the stance taken by the appellant in the present appeal.

5. We have heard the arguments of the learned counsel for the parties and perused the record.

6. It is apparent from the impugned order that the learned Single Judge in Chambers himself conducted interview of respondent No.1 by putting to her questions of general knowledge and found her performance to be satisfactory to be appointed to the post of Corporal. With profound deference to the learned Single Judge in Chambers, we are of the opinion that the learned Single Judge completely misdirected himself in assuming the mantle of the selection committee. The jurisdiction exercised by this Court under Article 199 of the Constitution is only concerned with the review of the process as against the merits review. It is settled position of law that this Court in writ jurisdiction cannot substitute its judgment with that of the administrative authorities. It is equally settled law that the courts cannot interfere in the results of interview as the same are subjective in nature. Reference in this regard is made to *Ashraf Sangri v. Federation of Pakistan and others* 2014 SCMR 157.

7. While allowing the writ petition filed by respondent No.1, the learned Single Judge in Chambers made the following observations:

Originally 379 posts of Corporal (Male and Female) were advertised, but despite availing numerous opportunities and specific directions of the Court, the respondents have failed to provide any detail as to whether all such advertised posts of 379 Corporal (Male and Female) were filled or yet there are some vacancies available. In absence of some concrete material showing the conclusion of recruitment process by filling all 379 posts of Corporal (Male and Female), it is presumed and rightly so that all such 379 posts were never filled and still there are vacancies of the post of Corporal (Male and Female).

Based on the above observations, the learned Single Judge in Chambers directed the respondents to appoint the petitioner against one vacancy of Corporal (Female). In making the afore-mentioned observation, the learned Single Judge in Chambers travelled in the realm of supposition which was not apt.

8. It is evident from the merit list appended with the appeal that all the 65 posts of Corporal (Female) were filled up by the respondents and that the candidates at Serial Nos.1 to 15 from the reserve list were also accommodated in place of those candidates on general merit list who opted not to join the post or were declared medically unfit. It is furthermore apparent from the record that there were three candidates ahead of petitioner on the reserve list. It is thus-clear that there was no vacancy available for the post of Corporal (Female) and that even if there had been a vacancy, the petitioner could not have been appointed to the post in question on account of three candidates ahead of her in the reserve list.

9. In the result we allowed this Intra Court Appeal and set aside order dated 13.12.2018 passed by learned Single Judge in Chambers.

ZC/F-6/L Appeal allowed.